

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: June 18, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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10 0	Novak vs. Andry, 24-01414288	<i>Off-calendar.</i>
10 1	Space Exploration Technologies Corp. vs. Enteshari, 23-01365637	Defendant Ali Enteshari ("Defendant") moves to compel plaintiff Space Exploration Technologies Corp. ("Plaintiff") to serve further responses to Form Interrogatories, Set One, Nos. 3.7, 9.1, 9.2, 12.1, 12.2, 12.3, 12.6, 12.7, 13.1, and 13.2 and for an order granting monetary sanctions. A party may move for an order compelling further responses to interrogatories if the party deems an

	answer to be evasive or incomplete, an exercise of the option to produce documents under section 2030.230 is unwarranted or the required specification of the documents is inadequate, or an objection is without merit or too general. (Code Civ. Proc., § 2030.300(a).) No. 3.7 Defendant argues further response to No. 3.7 regarding Plaintiff's licenses or registrations must be compelled because Plaintiff has not provided a complete response and its licenses are directly relevant to its operations, credibility, and potential regulatory compliance issues alleged in this case. In this action, Plaintiff alleges that Defendants obtained stolen property through a fraudulent credit card chargeback scheme. There are no issues regarding Plaintiff's regulatory compliance that are relevant here. Further, Plaintiff's licenses and registrations would not reveal any information regarding its operations that would be relevant here, such as its policies and procedures regarding credit card purchases, shipping and chargebacks. Nor would they bear on Plaintiff's credibility. Therefore, the information sought in No. 3.7 is not relevant or reasonably calculated to lead to the discovery of admissible evidence. No. 9.1 Defendant argues that further response to No. 9.1 is warranted because the response fails to provide the specific information requested regarding the nature, date, and amount of damages claimed and the recipient of each claimed item of damage. Plaintiff argues no further response is warranted because Defendant's use of the generic definition of the term "incident" renders the request unintelligible and, moreover, there is no further information to provide because a comprehensive explanation of Plaintiff's damages has been provided in a detailed spreadsheet. The term "incident" is defined as "the circumstances and events surrounding the alleged accident, injury, or other occurrence or breach of contract giving rise to this action or proceeding." By asking for all damages Plaintiff attributes to the incident, Defendant is plainly asking Plaintiff to provide information regarding all damages at issue in Plaintiff's own pleading. Plaintiff's argument that the interrogatory is unintelligible due to the defined term is rejected. Further, Plaintiff's arguments establish that there is additional information that Plaintiff could and should provide in response. While Plaintiff argues that all information available to it has been provided in a spreadsheet, as Defendant points out, the response itself
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	makes no reference to any spreadsheet or other document. Thus, the Court finds further response to be warranted. No. 9.2 This interrogatory asks Plaintiff to describe each document that supports the damages it claims. In response, Plaintiff listed several categories of documents: "documents showing that the payment information used to fund the purchase of goods that were shipped to Defendants were charged back by the credit card issue and the reasons therefor; shipping and delivery records; order history records; documents showing the share of Starlink kits that are sold directly by Responding Party; documents showing the amounts charged by the investigators, attorneys, and court system for investigating and pursuing Responding Party's claims against Defendants; and sheriffs' incident reports and property receipts." Defendant argues that further response is required because a generic reference to broad classes of documents is insufficient. The Court disagrees. The interrogatory asked Plaintiff to describe each relevant document and by providing the general categories of documents, Plaintiff has adequately identified all documents upon which it relies in support of its claim for damages. Plaintiff is not required to identify each individual document by name. Defendant also argues that the response is insufficient because it does not identify each person who has custody of the documents. However, Plaintiff represents that it has already produced its shipping and delivery records, Sheriff incident reports, property receipts, a spreadsheet with shipping, delivery, and chargeback information, and documents related to investigator fees. Thus, clearly, the identified documents are in the custody of Plaintiff. The Court does not find that compelling a further response to require Plaintiff to state that those documents are within its custody, a statement that would provide no probative value, to be warranted. No. 12.1 Defendant argues that a further response to No. 12.1 is warranted because Plaintiff's objection to the term "incident" is without merit. While the Court agrees that the objection is without merit, Plaintiff provided a full and complete response to the interrogatory despite its objection. Thus, the Court finds no further response to be warranted. Nos. 12.2, 12.3, and 12.6
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	Interrogatory No. 12.2 asks Plaintiff whether anyone on its behalf interviewed any individual concerning the incident and, if so, for the name, address, and telephone number of both the interviewer and the interviewee and the date of the interview. No. 12.3 asks for the same information regarding any written or recorded statement obtained by Plaintiff. No. 12.6 asks for information regarding reports made by any person concerning the incident. In response to Nos. 12.2 and 12.3, Plaintiff stated it would produce the Orange County Sheriff's Incident Report and Plaintiff's internal investigation records, and in response to No. 12.6, Plaintiff stated it would produce nonprivileged writings, all pursuant to Code of Civil Procedure section 2030.230. Defendant argues further responses are required because the documents produced do not "easily reveal all the information requested." However, the Court finds Plaintiff's reliance on section 2030.230, which allows for production of documents from which an answer to an interrogatory may be found if the burden of preparing a summary of the documents would be substantially the same for the propounding and responding parties, to be proper. No. 12.7 In response to this interrogatory regarding whether anyone has inspected the scene of the incident, Plaintiff stated that the interrogatory is inappropriate for the allegations at issue here. As Plaintiff points out, this is not a case where there was one single incident. Therefore, there is not one single "scene of the incident" to be inspected. Thus, the Court finds that Plaintiff's objection has merit and no further response is warranted. Nos 13.1 and 13.2 These interrogatories concern whether any surveillance was conducted by Plaintiff or anyone acting on its behalf. Plaintiff's response states that Plaintiff retained an investigator who conducted surveillance of Defendants Ali Enteshari and Amin Enteshari in late 2023 near the Rockrose Way address in Irvine, California and Plaintiff will produce the surveillance videos, which reflect the names and contact information of the investigators and the custodians of any surveillance photographs, along with any nonprivileged written reports. Defendant again argues that Plaintiff's reliance on section 2030.230 is improper. However, the burden of ascertaining the names and contact information of the investigators from the produced surveillance videos and written reports would be substantially the same for both Plaintiff and Defendant. The Court finds that Defendant's
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		arguments against section 2030.230 lack merit and no further responses are warranted. In light of all the above, the Motion to Compel Further Responses to Form Interrogatories is GRANTED as to No. 9.1 and DENIED as to all other disputed interrogatories. Plaintiff shall serve a further response within 15 days. No sanctions. <i>Moving party to give notice.</i>
10 2	Rask vs. County of Orange, 25-01495933	<i>Off-calendar.</i>
10 3	Mendes vs. Morrison, 25-01504828	Cross-Defendants Ace Professional Property Management Inc., James J. Liberio, and Liberio Realty Inc., dba Ace Professional Property Management ("Cross-Defendants") demur to the (1) first cause of action for breach of contract, (2) second cause of action for negligence, (3) third cause of action for breach of fiduciary duty, (4) fourth cause of action for implied indemnity, (5) fifth cause of action for comparative indemnity, (6) sixth cause of action for equitable indemnity, (7) seventh cause of action for contribution, and (8) eighth cause of action for declaratory relief as alleged in the Cross-Complaint by Lyle Morrison in his individual capacity and as trustee of The Morrison Living Trust, Dated May 24, 2023. The Cross-Complaint at issue is ROA 13. Cross-Complainant Lyle Morrison in his individual capacity and as trustee of The Morrison Living Trust, Dated May 24, 2023 opposes the demurrer. The Demurer presents three arguments: (1) the indemnity clause in the Management Agreement attached as Exhibit A to the declaration in support of the Demurrer bars Cross-Complainant's claims, (2) the negligence cause of action is barred by the economic loss rule, and (3) the fiduciary duty cause of action is barred because the parties were no in a fiduciary relationship. <i>1. Indemnity Clause</i> Much of Cross-Defendants' demurrer rests upon (1) the Court considering the contract attached as an exhibit to the declaration filed in support of the demurrer and (2) the Court interpreting that contract and the impact of that interpretation on the facts alleged in the Complaint. First, Cross-Defendants have provided no legal authority establishing that the Court is permitted to consider and interpret the contract attached as an exhibit to the

	declaration filed in support of the demurrer. This contract is not attached as an exhibit to the Cross-Complaint at issue and does not appear to be judicially noticeable. Cross-Defendants also do not argue that the contract is judicially noticeable. In determining the merits of a demurrer, “we accept as true all the material facts properly pleaded and we <i>do not go beyond the four corners of the complaint</i>, except as to matters which may be judicially noticed.” (<i>Thorburn v. Department of Corrections</i> (1998) 66 Cal.App.4th 1284, 1287–1288 [emphasis added].) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed [citations]. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action [citation].” (<i>SKF Farms v. Superior Court</i> (1984) 153 Cal.App.3d 902, 905.) “Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable.” (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 113.) “A matter ordinarily is subject to judicial notice only if the matter is reasonably beyond dispute.” (<i>Ibid.</i>) “The proper interpretation of a contract is disputable if the contract is susceptible of more than one reasonable interpretation, that is, if the contract is ambiguous.” (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 114.) “An ambiguity may appear on the face of a contract, or extrinsic evidence may reveal a latent ambiguity.” (<i>Ibid.</i>) Moreover, “[f]or a court to take judicial notice of the meaning of a document submitted by a demurring party based on the document alone, without allowing the parties an opportunity to present extrinsic evidence of the meaning of the document, would be improper.” (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 114–115.) “A court ruling on a demurrer therefore cannot take judicial notice of the proper interpretation of a document submitted in support of the demurrer.” (<i>Ibid.</i>) “In short, a court cannot by means of judicial notice convert a demurrer into an incomplete evidentiary hearing in which the demurring party can present documentary evidence and the
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	opposing party is bound by what that evidence appears to show.” (<i>Ibid.</i>) “The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable.” (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 113–114.) “[J]udicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed.” (<i>Ibid.</i>) Based on the authority above, the Court is not persuaded that it may consider, interpret, and apply the indemnity clause at issue in the demurrer. Second, even if the Court were to take judicial notice of the contract attached to the declaration of in support of the demurrer, the Court is not permitted to interpret the application of this contract because the interpretation and applicable to the facts alleged in the Cross-Complaint is disputable. In fact, based on the allegations in the Cross-Complaint, the indemnity clause discussed in the demurrer would not apply because Cross-Complainant alleges that Cross-Defendants improperly managed the premises. The application of the indemnity clause raised in the demurrer depends on the “proper management of the premises.” Based on the facts alleged in the Cross-Complaint, the indemnity clause would not apply. Given the above, the Demurrer is OVERRULED as to the indemnity clause argument. All arguments in the Demurrer rely on the Court applying the indemnity clause attached to the declaration in support of the Demurrer. 2. <i>Economic Loss Rule</i> Next, Cross-Defendants argue that Cross-Complainant negligence cause of action is barred by the economic loss rule. Defendant relies primarily on <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1 in support its argument that the negligence cause of action is barred by the economic loss rule. <i>Rattagan</i> held: “[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and
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rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20-21.)

Importantly, "the economic loss rule does not apply to limit recovery for intentional tort claims like fraud. The doctrine only applies to bar tort recovery for negligently inflicted economic losses unaccompanied by physical or property damage under the limits recognized in Sheen." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 38.)

Here, the Court finds that the economic loss rule does not bar the negligence cause of action. The Cross-Complainant alleges damage to the property at issue as a result of Cross-Defendants' alleged negligent management of the property at issue (water and mold damage) and further alleges that Cross-Complainants seek to recover damages according to proof.

The Demurrer is OVERRULED as to the economic loss rule argument.

3. *Fiduciary Relationship*

Last, Cross-Defendants argue that Cross-Complainant breach of fiduciary duty cause of action is barred because there is no fiduciary relationship between the parties. Rather, Cross-Defendants argue that their relationship is an "arm's length transaction" wherein Cross-Defendants offered a service in exchange for money.

In California, "[t]he elements of a claim for breach of fiduciary duty are (1) the existence of a fiduciary relationship, (2) its breach, and (3) damage proximately caused by that breach." (*O'Neal v. Stanislaus County Employees' Retirement Assn.* (2017) 8 Cal.App.5th 1184, 1215.)

"A fiduciary relationship is any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost good faith for the benefit of the other party." (*Wolf v. Superior Court* (2003) 107 Cal.App.4th 25, 29, as modified on denial of reh'g (Mar. 20, 2003) [citations omitted].) "Such a relation ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating

		to the interest of the other party without the latter's knowledge or consent." (<i>Ibid.</i>) "Technically, a fiduciary relationship is a recognized legal relationship such as guardian and ward, trustee and beneficiary, principal and agent, or attorney and client ... whereas a 'confidential relationship' may be founded on a moral, social, domestic, or merely personal relationship as well as on a legal relationship." (<i>Persson v. Smart Inventions, Inc.</i> (2005) 125 Cal.App.4th 1141, 1160.) Importantly, however, "[b]oth relationships give rise to a fiduciary duty, that is, a duty 'to act with the utmost good faith for the benefit of the other party.'" (<i>Persson v. Smart Inventions, Inc.</i> (2005) 125 Cal.App.4th 1141, 1160.) "The essence of a fiduciary or confidential relationship is that the parties do not deal on equal terms, because the person in whom trust and confidence is reposed and who accepts that trust and confidence is in a superior position to exert unique influence over the dependent party." (<i>Barbara A. v. John G.</i> (1983) 145 Cal.App.3d 369, 383.) Moreover, a "fiduciary relationship is created where a person reposes trust and confidence in another and the person in whom such confidence is reposed obtains control over the other person's affairs." (<i>Richard B. LeVine, Inc. v. Higashi</i> (2005) 131 Cal.App.4th 566, 586. Importantly, the Court in <i>Richard B. LeVine, Inc. v. Higashi</i> (2005) 131 Cal.App.4th 566, 583 expressly held that a "confidential relationship may exist between an accountant and a client." (<i>Ibid.</i>) Still, "[t]he mere placing of a trust in another person does not create a fiduciary relationship." (<i>Richard B. LeVine, Inc. v. Higashi</i> (2005) 131 Cal.App.4th 566, 586 [citing <i>Zumbrun v. University of Southern California</i> (1972) 25 Cal.App.3d 1, 13].) Also, "an agreement to communicate one's knowledge, exercising his special knowledge and skill in the area of learning concerned, does not create a trust but only a contractual obligation." (<i>Ibid.</i>) Likewise, an "ordinary arm's-length business relationship" does not constitute fiduciary relationship." (<i>Henry v. Associated Indemnity Corp.</i> (1990) 217 Cal.App.3d 1405, 1419.) Here, the Court finds that the Cross-Complaint alleges the requisite fiduciary relationship to survive the Demurrer. (Cross-Complaint, ¶¶ 33-42.) As alleged, "Section 1. a) of the Management Agreement provides in pertinent part: "The Owners [sic] hereby appoint ACE PROFESSIONAL PROPERTY MANAGEMENT as their sole and exclusive agent to rent, lease, and/or manage the
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		premises.” (Cross-Complaint, ¶ 9.) Moreover, “Section 1. c) of the Management Agreement provides in pertinent part: “The Company is empowered to sign leases on the Owner’s behalf, and to enforce the provisions of same, and to institute legal action or other proceedings to collect rents and other sums due, and to dispossess tenants and other persons from the premises.” (Cross-Complaint, ¶ 10.) The Court finds that Cross-Complainants have alleged the requisite principal-agent relationship to establish a fiduciary relationship at this stage in the litigation. As such, the Demurrer is OVERRULED as to this argument. The Demurrer is further OVERRULED as to the cause of action for declaratory relief as the Demurrer only argues that cause of action fails on the assumption that the Court would sustain the other arguments made in the Demurrer. In sum, the Demurrer is OVERRULED in its entirety. Cross-Defendants shall file an answer to the Cross-Complaint within 20 days of notice of this order The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. <i>Cross-Complainant to give notice.</i>
10 4	TruAbutment Inc. vs. BioAbutment Inc., 25-01517952	<i>Off-calendar.</i>
10 5	Ortiz vs. Nelson, 24-01439993	Defendant, Lee Wilton Nelson (“Defendant”), moves for an order compelling Plaintiff, Brandon Ortiz (“Plaintiff”), to appear for an independent orthopedic medical examination (“orthopedic IME”) with Michael P. Weinstein, M.D. pursuant to Code of Civil Procedure section 2023.310 and 2032.320. Defendant filed multiple versions of the instant motion, but they all seek the same relief. Defendant contends that Plaintiff alleges multiple injuries, with the relevant alleged physical issues that form the basis of this motion being orthopedic injuries that extend to his back and both feet. Defendant asserts that good cause exists for an orthopedic examination because Plaintiff received multiple epidural steroid injections for his back injury. Defendant asserts that an

	orthopedic examination by Dr. Weinstein will not overlap with, and would not be duplicative of, the neurological examination by Dr. Nudleman because Dr. Weinstein's examination will focus on Plaintiff's back and feet pain issues, whereas Dr. Nudleman's examination evaluated Plaintiff from the perspective of a neurologist for alleged head injuries, and that the scope of the examination by Dr. Weinstein is tailored to physical and orthopedic matters of Plaintiff's back, including but not limited to Plaintiff's active range of motion and grip strength, none of which are related to the examination by Dr. Nudleman. Defendant additionally contends that good cause is independently satisfied because an orthopedic IME is necessary to evaluate key damages issues—causation, permanency, disability, and future treatment. Plaintiff contends that this orthopedic IME is duplicative of the first IME and that Defendant fails to show good cause for a second independent medical examination ("IME") with an orthopedic specialist. "Any party may obtain discovery, subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by means of a physical or mental examination of (1) a party to the action, (2) an agent of any party, or (3) a natural person in the custody or under the legal control of a party, in any action in which the mental or physical condition (including the blood group) of that party or other person is in controversy in the action." (Code Civ. Proc. § 2032.020(a).) A party shall obtain leave of court if a party desires to obtain discovery by a physical examination other than that described in Article 2, commencing with Code of Civil Procedure section 2032.210, or by a mental examination. (Code Civ. Proc., § 2032.310(a).) The court shall grant a motion for a physical or mental examination under Code of Civil Procedure section 2032.310 only for good cause shown. (Code Civ. Proc., § 2032.320(a).) Good cause requires a showing of both: (1) relevancy to the subject matter; and (2) specific facts justifying discovery (i.e., allegations showing the need for the information sought and lack of means of obtaining it elsewhere). (<i>Vinson v. Superior Court</i> (1987) 43 Cal.3d 833, 840; Weil & Brown, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group June 2025 update) ¶ 8:1557.) The defendant has an unqualified right to demand one physical examination in a suit for personal injuries (§ 2032.220, subd. (a)) and the choice of the examining physician generally belongs to the defendant [citation] . . . Additional physical examinations may be obtained with
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	leave of court. [Citation.]” <i>Pratt v. Union Pacific Railroad Co.</i> (2008) 168 Cal.App.4th 165, 181.) The Court of Appeal in <i>Shapira v. Superior Court</i> (1990) 224 Cal.App.3d 1249, noted that the Legislature did not specifically limit the number of mental or physical examinations, that multiple defense examinations are permitted on a showing of good cause, and that analogous federal decisions have reached the same result, upholding multiple examinations by medical specialists in different fields pertinent to plaintiff’s injury, citing to a case involving an orthopedist and neurosurgeon. (<i>Shapira v. Superior Court</i> (1990) 224 Cal.App.3d 1249, 1255.) The Court of Appeal additionally noted that commentators “agree that multiple examinations should not be ordered routinely,” and that “the good cause requirement will check the potential harassment of plaintiffs by repetitive examinations.” (<i>Ibid.</i>) Here, there is no dispute that Plaintiff is claiming multiple injuries, including injuries to Plaintiff’s back and both feet, for which he received multiple epidural injections. and that Defendant is seeking a second physical examination of Plaintiff by way of an orthopedic specialist to evaluate Plaintiff’s injuries to his spine. On November 26, 2025, Plaintiff submitted to a defense medical examination conducted by Dr. Kenneth L. Nudleman, MD. (Declaration of Nathaniel Harding (“Harding Decl.”), ¶ 3, Ex. A.) Dr. Nudleman’s IME report for the November 26, 2025 examination of Plaintiff reflects that Dr. Nudleman elected to go forward with all of Plaintiff’s complaints, and questioning Plaintiff about the symptoms in his neck and lower back before conducting a physical examination of Plaintiff. (Harding Decl., ¶ 4, Ex. B, Dr. Nudleman’s IME Report, at pp. 1-2.) For this examination, Plaintiff was accompanied by a registered nurse who audiorecorded the examination. (Harding Decl., ¶ 5.) Dr. Nudleman performed a physical examination of Plaintiff’s spine, including questioning regarding his neck and back pain, as well as his foot pain. (<i>Ibid.</i>) Dr. Nudleman’s overall assessment of Plaintiff based on Plaintiff’s complaints and problems is, in part, that Plaintiff wear orthotics for plantar pain, that he has brief episodes of dizziness which do not limit his activities, and that Plaintiff has mild residuals of cervical sprain/strain, lumber sprain/strain, and scalp sensitivity. (Ex. B to Harding Decl., Dr. Nudleman’s IME Report, at pp. 3-4.) Dr. Nudleman further provides that Plaintiff has reached maximum improvement, and does not require any further medical care. (Ex. B to Harding Decl., Dr. Nudleman’s IME Report, at p. 4.)
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Defendant was aware of Plaintiff's epidural steroid injections before Dr. Nudleman's examination, as Plaintiff had produced copies of the bills and reports for these injections in Plaintiff's discovery response dated April 1, 2025. (Harding Decl., ¶ 6.)

Defendant contends that the purpose of Dr. Weinstein's examination is narrowly tailored and specific to assess Plaintiff's physical complaints, particularly his back pain and feet pain, that are different in scope and scope from the first IME which was a neurological examination. However, the evidence, namely Dr. Nudleman's IME report, undermines this assertion. Dr. Nudleman's IME report expressly provides that Dr. Nudleman went forward with all of Plaintiff's physical complaints, and the report reflects that this included Plaintiff's neck pain, back pain, and foot pain. Defendant's Demand for the second IME with Dr. Weinstein refers to examination of the neck, back, and upper and lower extremities. (See Ex. C of Harding Decl.) Therefore, the second IME that Defendant seeks appears to be an examination of the same complaints and claimed injuries as that which was conducted in the first IME, thus, appears duplicative. Defendant does not identify any complaint or injury that was not already covered by the first IME with Dr. Nudleman that would be covered by a second IME with Dr. Weinstein. As such, Defendant fails to show that an orthopedic examination by Dr. Weinstein will cover a claimed injury that was not covered by the neurological examination, or that Dr. Nudleman's IME addressed only one category of injury.

Nor does Defendant meaningfully distinguish between the examination done by Dr. Nudleman and the examination Defendant seeks that Dr. Weinstein perform. Notably, Defendant did not attach a copy of Dr. Nudleman's IME report as part of their moving papers and does not engage with substance of Dr. Nudleman's report in any manner. Instead, Defendant makes general, unsupported arguments that what an orthopedic surgeon may assess is different from what a neurologist may assess and that a neurological examination is different from an orthopedic examination.

Defendant additionally asserts there is good cause for an orthopedic IME as one is necessary to evaluate key damages issues such as causation, permanency, disability, and future treatment. There is no support for the proposition the IME from an orthopedic surgeon will be used for causation, and Dr. Nudleman has provided an opinion as to permanency, disability, and future treatment.

		Based on the foregoing, Defendant fails to show good cause for a second IME with Dr. Weinstein. Defendant's motion to compel an orthopedic IME with Dr. Weinstein is DENIED. <i>Plaintiff to give notice.</i>
10 6	MERCHANT CAPITAL SOURCE, LLC., A CALIFORNIA LIMITED LIABILITY COMPANY vs. RAM CONSTRUCTION S, AND ENGINEERING, LLC., A CALIFORNIA LIMITED LIABILITY COMPANY, 21-01195079	Defendant Jose Molina moves the court for an order setting aside default, and a default judgment entered 8/16/2021. The Court record herein establishes that on 4/12/2021 Plaintiff initiated this lawsuit by filing a Complaint against Defendants Ram Construction, and Engineering, LLC; Jose Molina; and DOES 1-100. (ROA 2.) Next, on 6/7/2021 Proofs of Service were filed herein indicating that Defendant Jose Molina was personally served with the Summons and Complaint at 100 East Macarthur Blvd., #506 Santa Ana, Ca 92707 on 5/13/2021. (ROA 9.) Additionally, the entity Defendant, Ram Construction and Engineering, LLC was served on the same date, by serving Jose Molina as the Registered Agent (ROA 11.) Thereafter, on 7/15/2021 default was entered as to RAM CONSTRUCTION, AND ENGINEERING, LLC., a California Limited Liability ENGINEERING, LLC., a California Limited Liability Company dba RAM CONSTRUCTION AND ENGINEERING; JOSE MOLINA, an individual. (ROA 13.) Defendant Jose Molina is listed on the attachment to the default document. Ultimately, on 8/16/2021 default judgment as to defaulted defendants was entered. (ROA 23.) Finally, on 12/4/2025 Defendant Jose Molina filed this Motion to Vacate Default and Default Judgment pursuant to CCP §473.5 and CCP §187. (ROA 62) Pursuant to CCP §473.5, "(a) When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered."

		Here, not only does the motion appear untimely, but Defendant has not overcome the presumption the proof of service establishes regarding actual notice. First, the evidence establishes that Defendant was personally served with the Summons and Complaint on 5/13/2021. Because the return was completed by a registered process server, it creates a presumption, affecting the burden of producing evidence, of the facts stated in the return. [Evid. Code, § 647; <i>Palm Property Investments, LLC v. Yadegar</i> (2011) 194 Cal.App.4th 1419, 1427-1428.] Second, Defendant's unsupported arguments that he was not served, do not overcome that presumption. Defendant filed a declaration stating, "I have not received any summons and complaint—except in connection with this motion. Referring to the proof of service that Plaintiff filed at the court on 06/07/2021, the summons and complaint were not served on me personally. I did not try to evade service of the summons and complaint." Notably, Defendant does not suggest who accepted the summons and complaint at 100 East Macarthur Blvd., #506 Santa Ana, Ca 92707; nor does he explain who the described person in the POS could possibly be. Rather, his self-serving declaration is without detail or explanation. As such, Defendant has not overcome the presumption that the process server personally served him on 5/13/2021—and thus he appears to have had actual notice of the lawsuit. Next, CCP §187 provides, "When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code." One case explains: "This provision affords trial courts "all the means necessary to carry [their jurisdiction] into effect," and courts may adopt "any suitable process or mode of proceeding ... which may appear most conformable to the spirit of this code" if the course of proceeding is not specifically pointed out. Section 187 "relates primarily to
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		procedural matters, typically to control the court's own process, proceedings and orders, but also may relate to situations in which the rights and powers of the parties have been established by substantive law or court order but workable means by which those rights may be enforced or powers implemented have not been granted by statute. [Citations.]” [<i>Phillips, Spallas & Angstadt, LLP v. Fotouhi</i> (2011) 197 Cal.App.4th 1132, 1142.] Here, however, the rights of Defendant to vacate the default and default judgment have been implemented and covered by the Code of Civil Procedure; and thus, citation to CCP §187 is unnecessary. For these reasons, the motion is DENIED. Plaintiff to give notice.
10 7	Armstrong vs. DH Dental Employment Services, LLC, 25-01508012	<i>Case Management Conference</i>
10 8	Prindiville vs. Golden Rain Foundation of Laguna Woods, 23-01315296	Defendant Golden Rain Foundation of Laguna Woods (“Defendant”) moves for summary judgment or, in the alternative, summary adjudication on the Third Amended Complaint (TAC) of plaintiff Jim Prindiville (“Plaintiff”). The Court notes that Plaintiff’s counsel of record has been ordered ineligible to practice law. Defense counsel provided notice of counsel’s ineligibility to Plaintiff on April 8, 2026 by phone and on April 9 by mail. On April 23, 2026, the Court continued the hearing on Defendant’s Motion for Summary Judgment to provide Plaintiff with further opportunity to file any opposition. Defendant served a Notice of Ruling on April 29, 2026 on Plaintiff directly via mail, giving Plaintiff notice of the continued hearing date and Plaintiff’s deadline to file any opposition papers. (ROA 228.) To date, Plaintiff has not opposed the Motion for Summary Judgment. Former counsel for Plaintiff, in a declaration filed on April 23, 2026, contends that the moving papers must be re-served and/or the hearing continued so that Plaintiff can secure new legal counsel, as the moving papers were served on former counsel when his law license was suspended and were not served on Plaintiff personally with adequate notice.

	The Court, on its own motion, will take judicial notice of the California State Bar's records unless any party demonstrates that judicial notice would be improper. (State Bar of California online attorney profile https://apps.calbar.ca.gov/attorney/Licensee/Detail/183912 [as of June 11, 2026].) (See Evid. Code, § 455(b); see also Evid. Code, § 452(h); <i>People v. Vigil</i> (2008) 169 Cal.App.4th 8, 12, fn. 2 [taking judicial notice of State Bar records, including notation of date attorney was not eligible to practice law]; <i>People v. Riggs</i> (2026) 119 Cal.App.5th 213, 219, fn. 6 [same].) The State Bar records show that Plaintiff's former counsel was not ordered inactive until February 10, 2026. Thus, when the Motion for Summary Judgment papers were served on former counsel on December 17, 2025, he was still active and acting as Plaintiff's representative in this matter and Defendant's service on Plaintiff's then-active counsel was proper and timely. In addition, Plaintiff has now been afforded a second opportunity to oppose the Motion, request further continuance, or obtain new counsel and has failed to do so. Thus, the Court finds no further continuance to be warranted. Here, the TAC asserts a single cause of action for breach of fiduciary duties. The TAC alleges that on January 23, 2021, Plaintiff took bus transportation provided by Defendant and on the return trip, the bus driver opened the exit doors but did not get up to assist passengers who were obviously disabled off the bus. When Plaintiff exited, he fell because the ramp was not fully extended. Plaintiff alleges that the fall caused him pain and suffering and irreparable damage to his prosthetic hip. He further alleges it caused him to become mentally incompetent until at least March 27, 2001 when he was first able to care for himself without skilled nursing care, as he was prescribed and given full time care from the date of his fall and he could not mentally or physically care for himself from March 4 through March 26, 2021 due to the medication he was prescribed. Through deemed admissions, Plaintiff admits that Defendant never breached a fiduciary duty owed to Plaintiff, that he was not mentally incompetent at any time between the dates of January 23, 2021 and March 26, 2021, that his complaint was filed more than two years after the date of the incident, and that his claims in connection with the incident are time-barred by the statute of limitations set forth in Code of Civil Procedure section 335.1. These admissions are fatal to Plaintiff's claim.
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		"The Code of Civil Procedure does not specify a statute of limitations for breach of fiduciary duty." (<i>Thomson v. Canyon</i> (2011) 198 Cal.App.4th 594, 606.) "There is a limitation to the applicability of this statute of limitations, as with any statute of limitations. It is widely understood that a plaintiff is not permitted to evade a statute of limitations by artful pleading that labels a cause of action one thing while actually stating another. California courts therefore look to the gravamen of the cause of action." (<i>Ibid.</i>) While Plaintiff labels his cause of action as one for breach of fiduciary duty, the gravamen of his action is that the acts of Defendant's employee were negligent. Thus, the two-year statute of limitations period governing negligence applies. Plaintiff's action was filed after the two year time period lapsed. Plaintiff has also admitted that facts underlying the alleged tolling of the statute of limitations due to lack of mental capacity alleged in the TAC are false. Further, to the extent Plaintiff has any viable breach of fiduciary duty cause of action against Defendant, i.e., he can show that there was a fiduciary relationship, he has admitted that no breach of such relationship occurred. All of the above demonstrate that Plaintiff's cause of action for breach of fiduciary duty fails as a matter of law. Therefore, Defendant's Motion for Summary Judgment is GRANTED. Defendant to prepare the appropriate order and proposed judgment. <i>Defendant to give notice.</i>
10 9	Potter vs. Brookdale Irvine, 22-01278030	<u>MSJ #1</u> Defendant, Brookdale Living Communities, Inc. ("Brookdale Living"), moves for summary judgment, or in the alternative, summary adjudication of the four causes of action asserted in the operative Second Amended Complaint of Plaintiffs, Betty Gregory, in and through her Successor-In-Interest, Kimberly Potter and Kimberly Potter. "Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-

	day period of notice shall be increased by two court days." (Code Civ. Proc., § 437c(a)(2).) On February 26, 2026, the Court granted Plaintiffs' counsel's motions to be relieved as counsel of record for Kimberly Potter, indicating that the "withdrawal is only effective upon the filing of a proof of service of this [signed] order on Plaintiff." (ROA 413.) The Court's file reflects that proof of service of the order granting the motion to be relieved as counsel of record was filed on April 6, 2026. (ROA 463, 465.) After the Court granted Plaintiff's counsel motion to be relived as counsel on February 2026, but before proof of service of the order granting the motion to be relieved as counsel of record was filed on April 6, 2026, Defendant, Brookdale Living filed and served the instant motion for summary judgment, or in the alternative, summary adjudication on March 25, 2026. The proofs of service attached to the moving papers indicate that the moving papers were served on Kimberly Potter on March 25, 2026, by electronic service only. California Rules of Court, rule 2.253(b)(2) provides that "[s]elf-represented parties or other self-represented persons are exempt from any mandatory electronic filing and service requirements adopted by courts under this rule and Code of Civil Procedure section 1010.6." Additionally, "[i]n civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; however, in these cases, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise." (California Rules of Court, rule 2.253(b)(3).) "An unrepresented party may consent to receive electronic service." (Code Civ. Proc. §1010.6(c)(2).) Express consent to electronic service may be given by either (1) serving a notice on all parties and filing the notice with the court, or (2) "[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent." (Code Civ. Proc. §1010.6(c)(3)(i)-(ii).) California Rules of Court, rule 2.251(b) sets forth similar
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	ways in which a party may agree to accept electronic service. Kimberly Potter is self-represented. It does not appear that Kimberly Potter has affirmatively agreed to accept service by electronic means. Nor has Kimberly Potter filed an opposition to the instant motion for summary judgment and/or summary adjudication. Under these circumstances, it does not appear that Defendant Brookdale Living properly served the moving papers on Kimberly Potter. Consequently, Brookdale Living's motion for summary judgment and/or summary adjudication is DENIED, without prejudice. <i>The Court orders clerk to give notice.</i> <u>MSJ #2</u> Defendant, BLC Inn at the Park, LLC dba Brookdale Irvine ("Brookdale Irvine"), moves for summary judgment, or in the alternative, summary adjudication of the four causes of action asserted in the operative Second Amended Complaint of Plaintiffs, Betty Gregory, in and through her Successor-In-Interest, Kimberly Potter and Kimberly Potter. "Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc., § 437c(a)(2).) On February 26, 2026, the Court granted Plaintiffs' counsel's motions to be relieved as counsel of record for Kimberly Potter, indicating that the "withdrawal is only effective upon the filing of a proof of service of this [signed] order on Plaintiff." (ROA 413.) The Court's file reflects that proof of service of the order granting the motion to be relieved as counsel of record was filed on April 6, 2026. (ROA 463, 465.) After the Court granted Plaintiff's counsel motion to be relived as counsel on February 2026, but before proof of service of the order granting the motion to be relieved as
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	counsel of record was filed on April 6, 2026, Defendant, Brookdale Living filed and served the instant motion for summary judgment, or in the alternative, summary adjudication on March 25, 2026. The proofs of service attached to the moving papers indicate that the moving papers were served on Kimberly Potter on March 25, 2026, by electronic service only. California Rules of Court, rule 2.253(b)(2) provides that “[s]elf-represented parties or other self-represented persons are exempt from any mandatory electronic filing and service requirements adopted by courts under this rule and Code of Civil Procedure section 1010.6.” Additionally, “[i]n civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; however, in these cases, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise.” (California Rules of Court, rule 2.253(b)(3).) “An unrepresented party may consent to receive electronic service.” (Code Civ. Proc. §1010.6(c)(2).) Express consent to electronic service may be given by either (1) serving a notice on all parties and filing the notice with the court, or (2) “[m]anifesting affirmative consent through electronic means with the court or the court’s electronic filing service provider, and concurrently providing the party’s electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent.” (Code Civ. Proc. §1010.6(c)(3)(i)-(ii).) California Rules of Court, rule 2.251(b) sets forth similar ways in which a party may agree to accept electronic service. Kimberly Potter is self-represented. It does not appear that Kimberly Potter has affirmatively agreed to accept service by electronic means. Nor has Kimberly Potter filed an opposition to the instant motion for summary judgment and/or summary adjudication. Under these circumstances, it does not appear that Defendant Brookdale Living properly served the moving papers on Kimberly Potter. Consequently, Brookdale Living’s motion for summary judgment and/or summary adjudication is DENIED, without prejudice. <i>The Court orders clerk to give notice.</i>
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